

26STCV09116 26STCV09116

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-07-30

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Case Number: 26STCV09116 Hearing Date: July 30, 2026 Dept: 512

HEARING DATE: Thurs., July 30, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Stephens

v. Ford Motor Company COMP.

FILED: 03-20-26

CASE NUMBER: 26STCV09116

FAC FILED: 04-21-26

NOTICE: NO

PROCEEDINGS: DEMURRER

AND MOTION TO STRIKE

MOVING PARTY: Defendant

Ford Motor Company

RESP. PARTY: Plaintiff Jacqueline Stephens

DEMURRER WITH MOTION TO STRIKE

(CCP §§ 430.10, et seq.; 435;
436)

TENTATIVE RULING:

Defendant Ford Motor Company's

Demurrer and Motion to Strike are CONTINUED to Monday, August 31, 2026, at 9:00

a.m. in Department 512 of the Stanley Mosk Courthouse. Case Management Conference is continued to August 31, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

At least 16 court days prior to the next scheduled hearing, Defendant is to file and serve the Demurrer.

Moving party is ordered to give notice.

SERVICE:

☐ Proof of Service Timely Filed (CRC, rule 3.1300) NO

☐ Correct Address (CCP §§ 1013, 1013a) NO

☐ 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) NO

OPPOSITION: Filed on June 26, 2026 ☐ Late ☐ None

REPLY: Filed on July 23, 2026 ☐ Late ☐ None

ANALYSIS:

I.
Background

On March 20, 2026, Plaintiff Jacqueline Stephens ("Plaintiff") filed the instant action against Defendant Ford Motor Company ("Defendant") and Does 1-20, alleging causes of action for Breach of Implied Warranty of Merchantability under the Song Beverly Act; Breach of Express Warranty under The Song-Beverly Act; Fraudulent Concealment; and Violation of Civil Code Section 1750, et seq. (Compl., p. 1.)

On April 21, 2026, Plaintiff filed a

First Amended Complaint ("FAC") against Defendant and Does 1-20, alleging causes of action for Breach of Implied Warranty of Merchantability under the Song Beverly Act; Breach of Express Warranty under The Song-Beverly Act; Fraudulent Concealment; and Violation of Civil Code Section 1750, et seq.

On May 26, 2026, Defendant filed the instant Motion to Strike Portions of Plaintiff's FAC (the "Motion").

On June 26, 2026, Plaintiff filed an Opposition to a Demurrer and an Opposition to the Motion.

On June 30, 2026, the Court continued the hearing on "Demurrer – with Motion to Strike." (6/30/26 Order.) That same day, Plaintiff filed and served notice of ruling.

On July 23, 2026, Defendant filed a Reply to a Demurrer and a Reply to the Motion.

II.

Procedural
Issues

As an initial matter, the Court's reservation system states there is a Demurrer and Motion to Strike on calendar for the instant hearing; however, there is no Demurrer in the Court's docket as of July 27, 2026. The Court may not rule on a demurrer not before the Court.

As the Motion that is in the Court's docket appears to be filed in conjunction with a demurrer, and the parties have filed Opposition and Reply briefs regarding both the Motion and a demurrer, the Court finds a continuance of the Motion is warranted to allow a demurrer to be filed and served.

Thus, the instant hearing is
CONTINUED.

III.

Conclusion & Order

Based on the foregoing, Defendant Ford

Motor Company's Demurrer and Motion to Strike are CONTINUED to Monday, August 31, 2026, at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse. Case Management Conference is continued to August 31, 2026 at 9:00 a.m. in Department 512 of the Stanley Mosk Courthouse.

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